

22. 9:01 AM CASE NUMBER: C25-01464

CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY

FILED BY: THREEZ INVESTMENTS, INC.

TENTATIVE RULING:

Summary:

Plaintiff Threez Investments, Inc.'s ("Plaintiff") Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant is **unopposed**, and is therefore, **granted**. Plaintiff filed a Motion to Compel Further Responses to Discovery on Defendant Aman Pohyar ("Defendant") on February 5, 2026. The Motion was supported by Notice, Amended Notice, Memorandum of Points and Authorities and Declaration of Counsel Mu. No timely responses to this Motion was filed by Defendant. No appearance is required at the hearing on April 29, 2026.

Analyses

The Court is aware that Defendant is proceeding without an attorney in his lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Defendant was misled by the Court or by Plaintiff. Indeed, the declaration filed by Plaintiff's Counsel indicate that she took reasonable steps to meet and confer with Defendant regarding his obligation to provide further responses to discovery and was aware of the deadlines, and did not serve further responses. He also did not oppose this Motion.

Plaintiff's Failure to File Opposition is Deemed to be Consent to the Motion

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent

to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver.]) Applied here, the Court finds that failure to timely oppose this Motion is deemed to be Plaintiff’s consent to the granting this Motion.

After reviewing the moving papers and considering the applicable statutory and decisional authority, the Court finds good cause to grant Plaintiff Threez Investments, Inc.’s Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant.

Ruling

1. Plaintiff Threez Investments, Inc.’s (“Plaintiff”) Motion to Compel Further Responses to Discovery and for Monetary Sanctions in the amount of \$3,750.00 to be imposed on Defendant is **granted**.
2. The Court will execute the proposed order lodged on February 5, 2026 and the clerk of the Court will attach this tentative ruling and file the order. Plaintiff’s Counsel shall serve a Notice of Entry of Order to Defendant.
3. No appearance is required at the hearing on April 29, 2026.

23. 9:01 AM CASE NUMBER: C22-01897
CASE NAME: AMANDA GALLAGHER VS. ESSEX PROPERTY TRUST INC, A MARYLAND CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLTFs DISCOVERY REQUESTS**
FILED BY: GALLAGHER, AMANDA
TENTATIVE RULING:

Summary

Plaintiffs Amanda and Shane Gallagher’s (“Plaintiffs”) Motion to Compel Responses to Plaintiff’s Discovery Requests and for Admissions to be Deemed Admitted from Defendant Essex Property Trust, Inc. (“Defendant”) is **granted**. Sanctions requested by both parties are **denied**.

Background

This case involves a dispute between Plaintiffs who are tenants, and Defendant, who is an owner of real property leased to Plaintiffs. The causes of action allege breach of the covenant of quiet enjoyment, habitability, retaliation, negligence, and unfair business practices.

On December 22, 2025, Plaintiffs served upon Defendant Request for Production of Documents, Set